IN THE NATIONAL COMPANY LAW TRIBUNAL: NEW DELHI
COURT-IV

ITEM No. 410
CP(CAA)85/ND/2024

IN THE MATTER OF:
Spoton Logistics Private Limited And Spoton Supply Chain Solutions Private Limited .... Applicant

Under Section 230-232 of the Companies Act, 2013

Order delivered on 08.07.2025

CORAM:
SHRI MANNI SANKARIAH SHANMUGA SUNDARAM
HON'BLE MEMBER (JUDICIAL)
SHRI ATUL CHATURVEDI
HON'BLE MEMBER (TECHNICAL)

HYBRID HEARING (PHYSICAL & VC)

PRESENT:

For the Applicant	:	Mr. Anubhav Goel, Ms. Preeti Goel, Ms. Rashmi Mishra, Ms. Priyanka, Advocates
For the OL	:	Mr. Kush Taneja, Advocate
For the RD	:	Mr. Sumit Kansal, Mr. Aryan Gupta, Advocates
For the IT Deptt.	:	Mr. Induraj Singh Rai, SSC, Mr. Rahul Singh, Mr. Sanjeev Menon, Mr. Nishant Shokeen, Mrs. Sumita Singh, Mr. Yash Bhardwaj, Advocates

ORDER

Ld. Counsel for the Applicant is present physically. Ld. Counsel for the RD is present physically. Mr. Rahul Singh, Ld. Counsel for the Income Tax Department is present through VC. Mr. Kush, Ld. Counsel for the OL is present through VC.

Heard the arguments on behalf of the Applicant with regard to observation 1 & 3 made by the RD.

Applicant is directed to file an Affidavit with regard to observation made by the RD in para 1 & 3 within a week's time.

Ld. Counsel for the Income Tax Department submitted that they have already filed report with regard to transferor company and with regard to transferee company, he seeks some more time to file report.

On perusal of records, it appears that this Tribunal has given several opportunities to the Income Tax Department to file report with regard to the transferee company and till today no report has been filed. However, in the interest of justice, a week's time is granted to the Income Tax Department to file report, failing which, it will be presumed that no representation is there by the Income Tax Department with regard to the transferee company.

Ld. Counsel for the Applicant submitted that they have already complied with the order dated 06.05.2025 by filing an affidavit of undertaking with regard to tax liabilities on behalf of Transferor and Transferee Company and the same is on record.

List the matter on **05.08.2025.**

Sd/-	Sd/-
(ATUL CHATURVEDI)	**(MANNI SANKARIAH SHANMUGA SUNDARAM)**
MEMBER (TECHNICAL)	**MEMBER (JUDICIAL)**

Abhishek